

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

-----X
JONATHAN MERCADO,

Plaintiff,

SUMMONS

-against-

Basis of Venue:
Place of Incident

THE CITY OF NEW YORK, NYPD OFFICER
LENNOX CORLETTE (Shield # 2845), and NYPD
OFFICERS JOHN and JANE DOE #'s 1-10 (names
and numbers are unknown at present) and Other
Unidentified members of the New York City Police
Department,

Plaintiff Designates
Bronx County
as the place of trial

Defendants.
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To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
June 6, 2022

Respectfully submitted,

/s/ Sydney O'Hagan
Sydney O'Hagan, Esq.
40 Exchange Place
Suite 1000
New York, New York 10005
(774) 218-3461
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TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007

NYPD OFFICER LENNOX CORLETTE (Shield # 2845), 46th Precinct, Bronx, New York

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

-----X
JONATHAN MERCADO,

Plaintiff,

**VERIFIED
COMPLAINT**

-against-

THE CITY OF NEW YORK, NYPD OFFICER
LENNOX CORLETTE (Shield # 2845), and NYPD
OFFICERS JOHN and JANE DOE #'s 1-10 (names
and numbers are unknown at present) and Other
Unidentified members of the New York City Police
Department,

Defendants.

-----X
Plaintiff **Jonathan Mercado**, by his attorney, SYDNEY O'HAGAN, ESQ., as and for the Complaint herein,
alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983 and the rights secured by the Fourth, Fifth, Eighth, and Fourteenth Amendments to the United States Constitution. Plaintiff was unlawfully arrested by the defendants. Plaintiff was deprived of his federal constitutional rights when the individually named police defendants subjected him to, among other things, false arrest, unlawful search and seizure, malicious prosecution, negligence, gross negligence, intentional and negligent infliction of emotional distress and implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees and such other relief as the Court deems just and proper.

PARTIES

2. Jonathan Mercado is a resident of the State of New York, Bronx County.
3. Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.
4. NYPD OFFICER LENNOX CORLETTE, assigned Shield # 2845, employed with the 46th Precinct, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
5. NYPD OFFICER LENNOX CORLETTE (Shield # 2845) is being sued in his individual capacity and official capacity.
6. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
8. New York Police Officers John and Jane Doe #'s 2-10 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
9. Police Officers John and Jane Doe #'s 2-10 are being sued in his/her individual capacity and official capacity.
10. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police

Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

STATEMENT OF FACTS

12. On October 21, 2018, at approximately 1:30 a.m. in the vicinity of 325 East 176th Street, Bronx, New York, several police officers from the 46th precinct, and other unknown police commands, including upon information and belief, NYPD Officer Lennox Corlette (Shield # 2845) and P.O. John and Jane Does #1-10, and other as yet unknown police officers, at times acting in concert and at times acting independently, committed the following illegal acts against Plaintiff.
13. On October 21, 2018 at approximately 1:30 a.m. in the vicinity of 1848 Anthony Avenue, Plaintiff was walking with friends, including Aaron Gonzales-Lott and Gavin Rodriguez, to go to a local store. On their way to the store, Plaintiff Mercado and his friends passed by a group of people they did not know and a fight broke out among that group of individuals. Plaintiff Mercado did not know the individuals and he was not involved in the fight. Mr. Gonzales-Lott was injured by some of the people fighting and received a cut to his face. Plaintiff Mercado and his friends got into a car to drive to a local hospital, but were stopped by multiple police officers before arriving there.

14. Plaintiff Mercado was not driving the vehicle. He was sitting in the front passenger seat of the vehicle and therefore was not responsible in the manner in which the car was driven.
15. Police officers used their vehicle to illegally block the vehicle, and then handcuffed and frisked Plaintiff. He was unlawfully placed in an NYPD vehicle and driven to a precinct.
16. At the time of his arrest, and at all times subsequent, there was no evidence in or around Plaintiff's person indicating he had committed a crime. No contraband or the proceeds of any alleged robbery was recovered from Plaintiff's person. No proceeds from the robbery were recovered from the vehicle.
17. Once the defendant officers approached Plaintiff, he was not free to leave.
18. At the scene, defendant officers exercised unduly suggestive identification techniques to obtain a positive "point out" of Plaintiff at the scene.
19. The complaining witnesses were heavily under the influence of illegal drugs at the time of Plaintiff's identification. Defendant officers, including defendant officer Corlette, understood that complainants were not in a sound state of mind to make a reliable identification, but permitted the identification to continue.
20. Plaintiff was detained at the 46th Precinct for several hours. During this time, the handcuffs on Plaintiff's wrists and ankles were fastened in an extremely tight manner, causing Plaintiff severe pain. Despite Plaintiff's complaint and request to loosen the cuffs, defendant officers failed to do so.
21. Despite being suffering injuries to his wrists, Plaintiff was not offered medical care or taken to the hospital.
22. Plaintiff was later transported to Bronx Central Booking.

23. While plaintiff was incarcerated at the 46th precinct and Brooklyn Central Booking, defendants falsely and maliciously told the Kings County District Attorney's Office that Plaintiff had committed numerous crimes, including Robbery in the Second and Third Degrees, Attempted Robbery, Grand Larceny in the Fourth Degree, Petit Larceny, Assault in the Third Degree., and Reckless Driving. Defendants knew these allegations to be false based on the lack of any material evidence that Plaintiff had committed any crime.
24. Additionally, in contravention of defendant NYPD officers' allegations and the Bronx County District Attorney's Office charging decisions, Plaintiff at no time robbed anyone, took or possessed stolen property, harassed, menaced, assaulted or attempted to assault any person.
25. Based on the defendant's false statements, the Bronx County District Attorney's office chose to prosecute Plaintiff under docket 2018BX036000.
26. Defendant officers knew their suggestive identification procedures would unduly influence complainants, yet told the Bronx County District Attorney's office of the positive identification, omitting any information regarding the potential unreliability of the identification.
27. Defendant officer were aware that complainants' statements regarding the incident were unreliable, but used their statements to form the basis of the criminal complaint.
28. Upon information and belief, defendant officers testified in the grand jury about the identification of Plaintiff, yet did not provide information regarding the potential for suggestion or unreliability of that identification.
29. Upon information and belief, defendant officers testified in the grand jury complainants' statements regarding Plaintiff's alleged conduct, yet did not provide information regarding the potential unreliability of the statements.

30. As a direct result of his illegal arrest, false and malicious allegations, and malicious prosecution, Plaintiff was incarcerated for approximately eleven months.
31. During his confinement, plaintiff was subjected to depraved, filthy and inhumane conditions.
32. On September 21, 2019 the above-stated malicious prosecution terminated in plaintiff's favor when all charges against him was dismissed and sealed in their entirety.
33. Prior to dismissal, plaintiff attended multiple court appearances.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF

DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

34. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
35. All of the aforementioned acts of defendants CORLETTE, and NYPD OFFICERS JOHN and JANE DOE" #1-10, their agents, servants, and employees, were carried out under the color of state law.
36. All of the aforementioned acts deprived plaintiff of his rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.
37. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.
38. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.

39. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF

FALSE ARREST UNDER 42 U.S.C. § 1983

40. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
41. As a result of the aforesaid conduct by defendant CORLETTE, and POLICE OFFICERS “JOHN DOE” #1-10, plaintiff was subjected to an illegal, improper, and false arrest by the defendants CORLETTE, and POLICE OFFICERS “JOHN DOE” #1-10, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.
42. As a result of the foregoing, plaintiff’s liberties were restricted for an extended period of time, he was put in fear for his safety, and he was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

THIRD CLAIM FOR RELIEF

UNLAWFUL SEARCH UNDER 42 U.S.C. § 1983

43. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
44. Plaintiff was searched by defendants CORLETTE, and POLICE OFFICERS “JOHN DOE” #1-10 without an individualized reasonable suspicion that plaintiff had committed any crime or in possession of any illicit contraband, proceeds of a robbery, illegal weapons, or any other illegal substances.

45. As a result of the aforesaid conduct by defendants CORLETTE, and POLICE OFFICERS “JOHN DOE” #1-10 plaintiff’s persons was illegally and improperly searched without consent, a valid warrant, probable cause, and a specific articulable factual basis supporting a reasonable suspicion and/or probable cause to believe plaintiff was in possession of contraband or any illegal substance as set forth in the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States.
46. As a result of the foregoing, plaintiff was deprived of his Constitutional rights and has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

FOURTH CLAIM

DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983

47. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
48. Defendants CORLETTE, and POLICE OFFICERS “JOHN DOE” #1-10 created false evidence against the plaintiff, alleging that he was identified as committing a robbery, when that identification was unduly suggestive and unreliable.
49. Defendants CORLETTE, and POLICE OFFICERS “JOHN DOE” #1-10 forwarded false evidence and false information to prosecutors in the Bronx County District Attorney’s Office – namely, the defendants falsely informed prosecutors *inter alia*, that they alleged Plaintiff had committed a robbery on the day of his arrest, when, in fact, they had no physical evidence or other reliable evidence to establish the Plaintiff had any connection with any robbery, and, in fact, did not have probable cause to arrest him for said offenses.

50. Defendants CORLETTE, and POLICE OFFICERS “JOHN DOE” #1-10 misled the prosecutors by creating false evidence against the plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.
51. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants CORLETTE, and POLICE OFFICERS “JOHN DOE” #1-10 violated plaintiff’s constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.
52. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FIFTH CLAIM FOR RELIEF

FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983

53. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
54. Defendants CORLETTE, and POLICE OFFICERS “JOHN DOE” #1-10 had an affirmative duty to intercede when plaintiff’s constitutional rights were being violated in defendants’ presence by the misrepresentation and falsification of evidence regarding the circumstances surrounding plaintiff’s arrest throughout all phases of the criminal proceedings.
55. Defendants CORLETTE, and POLICE OFFICERS “JOHN DOE” #1-10 further violated plaintiff’s constitutional rights when they failed to intercede and prevent the violation or further violation of plaintiff’s constitutional rights and the injuries or further injuries caused as a result of said failure.
56. As a result of the defendants’ failure to intercede when plaintiff’s constitutional rights were being violated in defendants’ presence, plaintiff sustained, *inter alia*, emotional injuries, plaintiff’s

liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

SIXTH CLAIM FOR RELIEF

MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

57. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
58. Defendants CORLETTE, and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 misrepresented and falsified evidence before the Bronx County District Attorney, including false allegations that Plaintiff committed any illegal actions against any other individual.
59. Defendants CORLETTE, and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 did not make a complete and full statement of facts to the District Attorney, including the unreliability of complainants’ identification and the unduly suggestive manner in which the identification was conducted.
60. Defendants CORLETTE, and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 withheld exculpatory evidence from the District Attorney.
61. Defendants CORLETTE, and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 were directly and actively involved in the initiation of criminal proceedings against plaintiff.
62. Defendants CORLETTE, and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 lacked probable cause to initiate criminal proceedings against plaintiff.
63. Defendants CORLETTE, and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 acted with malice in initiating criminal proceedings against plaintiff.
64. Defendants CORLETTE, and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 were directly and actively involved in the continuation of criminal proceedings against plaintiff.

65. Defendants CORLETTE, and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 lacked probable cause to continue criminal proceedings against plaintiff.
66. Defendants CORLETTE, and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 acted with malice in continuing criminal proceedings against plaintiff.
67. Defendants CORLETTE, and/or POLICE OFFICERS “JOHN DOE” #1-8 misrepresented and falsified evidence throughout all phases of the criminal proceedings.
68. Specifically, defendants CORLETTE, and/or POLICE OFFICERS “JOHN DOE” #1-10 made the aforementioned false and misleading allegations regarding the circumstances surrounding plaintiff’s arrest.
69. Notwithstanding the perjurious and fraudulent conduct of defendants CORLETTE, and/or POLICE OFFICERS “JOHN DOE” #1-10, the criminal proceedings were terminated in plaintiff’s favor on September 21, 2019.
70. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, he suffered economic damages, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

SEVENTH CLAIM FOR RELIEF

MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

71. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
72. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

73. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:
- A. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
 - B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
 - C. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
 - D. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and
 - E. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.
74. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiffs.
75. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiffs as alleged herein.

76. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiffs as alleged herein.
77. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiffs' constitutional rights.
78. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiffs' constitutional rights.
79. The acts complained of deprived the plaintiff of his right:
 - F. Not to be deprived of liberty without due process of law;
 - G. To be free from seizure and arrest not based upon probable cause;
 - H. Not to have summary punishment imposed upon them; and
 - I. To receive equal protection under the law.

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ATTORNEY'S VERIFICATION

I, **SYDNEY O'HAGAN**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **SYDNEY O'HAGAN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is out of the county.

DATED: New York, New York
June 6, 2022

Sydney O'Hagan /s/
Sydney O'Hagan, Esq.